

SENATE No. 2693

Senate, November 3, 2025 - Text of the Senate amendment (Senator Crighton) to the House Bill relative to the charter in the city of Lynn (House, No. 4149).

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

1 SECTION 1. Chapter 564 of the acts of 1972 is hereby repealed.

2 SECTION 2. Chapter 105 of the acts of 1997 is hereby repealed.

3 SECTION 3. Chapter 19 of the acts of 2003 is hereby repealed.

4 SECTION 4. The following shall be the charter for the city of Lynn:

5 CHARTER OF THE CITY OF LYNN

6 PREAMBLE

7 We the people of the city of Lynn, under the constitution and laws of the Commonwealth
8 of Massachusetts, in order to secure the benefits of local self-government and to provide for an
9 honest and accountable local government, do hereby adopt this charter and confer upon the city
10 the powers contained herein, subject to the following restrictions, and prescribed by the
11 following procedures and governmental structure. By this action, we the people secure the
12 benefits of home rule and affirm the values of representative democracy, encourage the passage
13 of knowledge between administrations which will aid in strong political leadership, public
14 engagement, diversity, inclusiveness and regional cooperation.

15 ARTICLE 1

16 INCORPORATION, FORM OF GOVERNMENT AND POWERS OF THE CITY

17 Section 1-1 Incorporation

18 The inhabitants of the city of Lynn within the territorial limits established by law shall
19 continue to be a body corporate and politic under the name "City of Lynn. "

20 Section 1-2 Short Title

21 This instrument shall be known and may be cited as the Lynn Special Act Charter.

22 Section 1-3 Division of Powers

23 The administration of the fiscal, prudential and municipal affairs of the city, with the
24 government thereof, shall be vested in an executive branch, which shall consist of the mayor, and
25 a legislative branch, which shall consist of the city council. The executive branch shall never
26 exercise any legislative power and the legislative branch shall never exercise any executive
27 power.

28 Section 1-4 Powers of the City

29 Subject only to express limitations on the exercise of any power or function by a city in
30 the constitution or laws of the commonwealth, it shall be the intent and purpose of the voters of
31 the city of Lynn, through the adoption of this charter, to secure for the city all powers it is
32 possible to secure under the constitution and statutes of the commonwealth, as fully and as
33 completely as though each such power were specifically and individually enumerated herein.

34 Section 1-5 Construction

The powers of the city under the charter are to be construed liberally in favor of the city, and the specific mention of particular powers is not intended to limit in any way the general powers of the city as stated in Section 1-4.

Section 1-6 Intergovernmental Relations

Subject only to express limitations in the constitution or statutes of the commonwealth, the city may exercise any of its powers or perform any function, and may participate in the financing thereof, jointly or in cooperation, by contract or otherwise, with the commonwealth or any political subdivision, or agency thereof or the United States government or agency thereof.

Section 1-7 Definitions

As used in this charter, the following words shall have the following meanings unless the context clearly requires otherwise:

- (a) “Charter” , this charter and any amendment to it hereafter adopted.
- (b) “City”, the city of Lynn.
- (c) “City agency”, a board, commission, committee or other multiple-member body, department, division or office of the city.
- (d) “City officer”, a person in charge of a department of the city who in the exercise of the duties of his office exercises some portion of the sovereign power, whether great or small.
- (e) “City website”, a set of related web pages located under a single domain name that is produced by the body corporate and politic of the city of Lynn.

(f) “Emergency”, a sudden, unexpected, unforeseen happening, occurrence or condition which necessitates immediate action.

(g) “Full council”, the entire authorized complement of the city council notwithstanding any vacancies which may exist.

(h) “General laws”, — general laws with all lower case letters shall mean laws enacted by the general court which apply alike to all cities and towns, to all cities or to a class of cities and towns of which the city of Lynn is a member.

(i) “General Laws”, with initial letter of each word in capital letters, the General Laws of the Commonwealth of Massachusetts, a codification and revision of statutes enacted on December 22, 1920 and all amendments thereto.

(j) “Initiative measure”, a measure proposed by initiative procedures under this charter.

(k) “Local newspaper”, a newspaper of general circulation within the city of Lynn.

(l) “Majority vote”, a majority of the full complement of the city council, school committee or other multiple-member body.

(m) “Measure”, an ordinance adopted or to be adopted by the city council or an order, resolution, vote or other proceeding adopted or to be adopted by the city council or the school committee.

(n) “Multiple-member body”, any body consisting of at least 2 members, whether elected, appointed or otherwise constituted; provided, however, that “multiple-member body” shall not include the city council or school committee.

(o) “Referendum measure”, a measure adopted by the city council or an order, resolution, vote or other proceeding adopted or to be adopted by the city council or the school committee that is to be protested by the referendum procedures under this charter.

(p) “Voters”, the registered voters of the city of Lynn.

ARTICLE 2

LEGISLATIVE BRANCH

Section 2-1 Composition; Eligibility; Election and Term

(a) Composition— There shall be a city council consisting of 11 members. The city council shall exercise the legislative powers of the city. Four members of the council, who shall be councilors at-large, shall be nominated and elected by and from the voters of the entire city. Seven members of the council, who shall be ward councilors, shall be nominated and elected by and from the voters of 7 city wards; provided, however, that 1 ward councilor shall be elected from each ward.

(b) Eligibility — Any voter shall be eligible to hold the office of councilor. A ward councilor, notwithstanding the ward councilor’s removal from 1 ward in the city to another during the term for which they were elected, may continue to serve and to perform the duties of the office until the expiration of the term for which that ward councilor was elected.

(c) Election and term — The term of office for councilors shall be for 2 years, which shall begin on the first business day of January following the election and until their successors are qualified.

Section 2-2 Presiding Officer

The city council shall, annually on the first business day in January, meet for the purpose of organization. The council shall be called together by the city clerk or, in the absence of the city clerk, by the senior member present, as determined by years of service, who shall preside. The city council shall then elect from among its members, by separate roll call votes, a president and vice president. A majority vote of the full council shall be necessary for such election. No other business shall be in order until such officers are elected. The president shall preside at all meetings of the city council, regulate the proceedings thereof and decide all questions of order. They shall have such other powers and duties as may be provided by the charter, by ordinance or by vote of the city council. They shall have the same right to vote as any other city councilor. In the event of the absence of the president, the vice president shall act as president.

Section 2-3 Compensation

The city council shall, by ordinance, establish an annual salary for its members. No ordinance increasing the salary shall be effective unless it shall have been adopted during the first 18 months of the term for which the councilors are elected and it provides that such salary shall take effect at the commencement of the term of office of the next city council to be elected.

Section 2-4 Prohibitions

(a) Appointment after expiration of term — A city councilor shall not hold any compensated appointive city office or city employment during the councilor's term and until 1 year following the expiration of the term for which the councilor was elected unless waived by a 2/3 vote of the full city council. Nothing in this subsection shall prohibit a city officer or city employee who has taken a leave of absence from such office or employment to serve on the city council from resuming the duties of their office following service as a city councilor.

(b) Interference in administration — Except as otherwise provided in this charter, no member of the city council and no committee of the city council shall directly participate in the conduct of the administrative business of the city.

Section 2-5 Exercise of Powers; Quorum; Rules of Procedure

(a) Exercise of powers — Except as otherwise provided by law or this charter, the legislative powers of the city council may be exercised in such a manner as it shall determine.

(b) Quorum — A majority of the city council shall constitute a quorum. The affirmative vote of a majority of the full council shall be necessary to adopt any motion, resolution, order or other measure, except as otherwise provided by law or this charter.

(c) Rules of procedure — The city council shall establish rules for its proceedings, including:

(i) scheduling regular meetings of the council which shall be held at such times and places as set by ordinance; and

(ii) scheduling special meetings of the council which shall be held at the call of the mayor as provided in section 3-5, at the call of the president of the council or at the call of any 3 members; provided, however, that notice of a special meeting shall be by written notice delivered via electronic mail at least 48 hours in advance of the time set and shall include the subjects to be acted upon.

(d) Except as otherwise provided by law, all sessions of the city council and all sessions of any committees of the city council shall be open to the public.

(e) Each issue which comes before the city council requiring planning or the selection of a course of action shall be determined by a vote of the city council, the results of which shall be recorded.

(f) A full, accurate, up-to-date record of the proceedings of the city council shall be kept and shall be open for inspection by the public. It shall include a record of each roll call vote.

Section 2-6 Council Access to Information

(a) In general — The city council may make investigations into the affairs of the city and into the conduct and performance of any city agency.

(b) City officers, members of city agencies, employees — The city council may require any city officer, member of a city agency or city employee to appear before it to give any information that the city council may require in relation to the municipal services, functions, powers or duties which are within the scope of responsibility of that person. This section shall not apply to school officials or employees.

(c) Mayor — The city council may require the mayor to provide specific information to it on any matter within the jurisdiction of the city council. The city council may require the mayor to appear before it, in person, to provide specific information on the conduct of any aspect of the business of the city. The mayor may bring to such a meeting any city officer or employee that the mayor deems necessary to assist in responding to the questions posed by the city council.

(d) Notice — The city council shall provide at least 7 days' notice to any person whom it may require to appear before it under this section and such notice shall include specific questions on which the city council seeks information. No person called to appear before the

city council under this section shall be required to respond to any question not relevant or related to those presented in advance and in writing.

Section 2-7 Appointments by the City Council

(a) City clerk — The city council shall, by a majority vote, appoint a city clerk who shall serve for a 5-year term. Any vacancy in the office of city clerk shall be filled in like manner for the remainder of any unexpired term. The city clerk shall receive such compensation as the city council may determine. The city clerk shall keep full and accurate records of the proceedings of the city council and perform such other duties as prescribed by the General Laws, by this charter or by ordinance. In the absence of the city clerk, the assistant city clerk shall perform the duties of the city clerk and shall perform such other duties as prescribed by the city clerk or by ordinance.

(b) Clerk of committees — The city council shall, biennially in January of the year following a municipal election, by a majority vote, elect a clerk of committees who shall hold office for 2 years, such term beginning not later than the first day of March in the year of the clerk of committees election and ending upon the election of a successor, unless sooner removed. The clerk of committees shall receive such compensation as the city council may determine. The clerk of committees shall keep full and accurate records of the proceedings of the several committees of the city council and shall perform such other duties as may be required of the clerk of committees by the city council.

(c) Other personnel — Subject to appropriation, the city council may employ such other personnel as it deems necessary, which may include an attorney on the staff of the city solicitor's office.

Section 2-8 Appointments to City Offices

The mayor shall submit to the city council the names of all persons the mayor desires to appoint to any city office as a department head or as a member of a multiple-member body; provided, however, that this section shall not apply to any position which is subject to civil service law. The city council shall refer all such names submitted to a standing committee which shall investigate the candidates for confirmation and make a report with recommendations to the full city council not less than 7 and not more than 21 days following such referral. If the city council takes no other action, the appointments shall become effective 30 days after the date the name was received by the city council.

Section 2-9 Ordinances and Other Measures

(a) Measures — No measure, except resolutions and other votes constituting ordinary, routine matters, shall be passed finally on the date on which they are introduced, except in the case of an emergency. Except as otherwise provided by this charter, each adopted measure shall take effect 30 days after adoption or at such other date as specified in the measure. No ordinance shall be amended or repealed except by another ordinance adopted in accordance with the charter or as provided in the initiative and referendum procedures.

(b) Emergency measures — An emergency measure shall be introduced in the form and manner prescribed for measures generally except that it shall be plainly designated as an emergency measure and shall contain statements after the enacting clause declaring that an emergency exists and describing its scope and nature in clear and specific terms. A preamble which declares and defines the emergency shall be separately voted on and shall require the affirmative vote of 2/3 of the full city council. An emergency measure may be passed with or

without amendment or rejected at the meeting at which it is introduced. No measure making a grant, renewal, or extension, of whatever kind or nature, or a franchise or special privilege shall be passed as an emergency measure and, except as otherwise provided by the laws of the commonwealth, no such grant, renewal or extension shall be made otherwise than by ordinance. An emergency measure shall become effective upon adoption or at such later time as it may specify.

Section 2-10 Filling of Vacancies

If a vacancy occurs in the office of city councilor, whether by failure to elect or otherwise and there is no regular city election scheduled to be held within 90 days following the date of the vacancy, the remaining councilors shall, within 30 days following the date of such vacancy, act to fill it. The city council shall fill the vacancy for the remainder of the unexpired term by choosing the defeated candidate receiving the most votes for the office of city councilor in the last regular city election if that defeated candidate received at least 20 per cent of the total ballots cast for the that position; provided, however, that for the purpose of this section, the 20 per cent minimum threshold shall be calculated as a ratio of the total number of ballots cast for the office of city councilor to the total number of ballots cast for the defeated candidate. If no defeated candidate received at least 20 per cent of the total ballots cast, the city council may, at its discretion, appoint a person, who may be the defeated candidate, from among the qualified voters of the city to serve for the remainder of the unexpired term. If the city council appoints a person to fill the vacancy under this section, the city clerk shall post notice of the vacancy at least 14 days prior to the meeting at which the council shall act to fill the vacancy. A person chosen to fill the vacancy shall take the oath of office and commence serving forthwith. A person

filling a vacancy in the office of councilor under this section shall not be entitled to have the words "candidate for re-election" printed against their name on the election ballot.

ARTICLE 3

EXECUTIVE BRANCH

Section 3-1 Mayor - Qualifications; Term of Office; Compensation

(a) Mayor, qualifications — The mayor shall be the chief executive officer of the city who shall be elected by and from the qualified voters of the city. Any registered voter may hold the office of mayor. The mayor shall devote full time to the duties of the mayor's office, shall not hold any other elective public office and shall not actively engage in any other business, occupation or profession while serving as mayor.

(b) Term of office — The term of office of the mayor shall be 4 years which shall begin on the first business day of January following the election and shall continue until a successor is elected and qualified.

(c) Compensation — The city council shall by ordinance establish an annual salary for the mayor. No ordinance increasing the salary of the mayor shall be effective unless it was adopted in the first 18 months of the term for which councilors are elected and provides that such salary shall be effective at the commencement of the next term of office of the mayor.

Section 3-2 Executive Powers; Enforcement of Ordinances

The executive powers of the city shall be vested solely in the mayor and shall be exercised by the mayor personally or through the several city agencies under the mayor's general supervision and control. The mayor shall cause the charter and the laws, ordinances and orders

246 for the government of the city to be enforced and shall cause a record of all the mayor's official
247 acts to be kept.

248 The mayor shall exercise general supervision and direction over all city agencies unless
249 otherwise provided by law. Each city agency shall furnish to the mayor, forthwith upon the
250 mayor's request, any information, materials or otherwise as the needs of the mayor and the
251 interest of the city may require.

252 Section 3-3 Appointments by the Mayor

253 The mayor shall appoint all city officers, department heads and members of multiple-
254 member bodies for whom no other method of appointment is provided by this charter. This
255 section shall not apply to persons serving under the school committee and the city clerk, persons
256 appointed by state officials and persons serving under the city council. All appointments made
257 by the mayor shall be subject to review by the city council as provided in section 2-8.

258 Section 3-4 Temporary Appointments to City Offices

259 If a vacancy in a city office occurs and the needs of the city require that such office be
260 filled, the mayor may designate a person to perform the duties of the office on a temporary basis
261 for not more than 120 days; provided, however, that such temporary appointment may be
262 extended for 30 days upon a majority vote of the full city council.

263 Section 3-5 Special Meetings

264 The mayor may at any time and for any purpose call a special meeting of the city council
265 by causing a notice of such meeting, including the purpose for which the meeting is necessary, to
266 be delivered by electronic mail to each member of the city council. The notice shall be delivered

at least 48 hours in advance of the time set or in a lesser period time if the mayor determines that an emergency exists.

Section 3-6 Approval of Mayor, Exception; Veto

Each order, ordinance or vote adopted or passed by the city council relative to the affairs of the city shall be presented to the mayor for approval, except resolutions, the selection of city officers or employees by the city council and any matters relating to the internal operations of the city council. If the mayor approves of the measure, the mayor shall sign it within 10 days. If the mayor disapproves of the measure, the mayor shall return the measure within 10 days, with the specific reasons for such disapproval attached to it, in writing, to the city council. The city council shall enter the objections of the mayor on its records and not sooner than 10 days but not later than 30 days from the date of its return to the city council, shall reconsider the same measure. If the city council, notwithstanding the disapproval by the mayor, shall again pass the order, ordinance or vote by a 2/3 vote of the full council, it shall then be deemed in force notwithstanding the failure of the mayor to approve it. If the mayor has neither signed a measure nor returned it to the city council within 10 days following the date it was presented to the mayor, the measure shall be deemed approved and in force.

Section 3-7 Temporary Absence of the Mayor

(a) Acting mayor — Whenever the mayor shall be unable to perform the duties of the office by reason of incapacitation or other cause as determined by a 4/5 vote of the full city council, the president of the city council shall be the acting mayor. Should the president of the city council be unable or unwilling to serve, the city council shall forthwith elect 1 of its members to serve as acting mayor.

(b) Powers of acting mayor — The acting mayor shall have only those powers of the mayor that are essential to conduct the business of the city in an orderly and efficient manner and on which immediate action is required. The acting mayor shall not make any permanent appointments or remove any person from city service unless the acting mayor has served in that capacity for more than 60 days. The acting mayor shall not approve or disapprove any measure adopted by the city council unless the time within which the mayor is required to act expires before the return of the mayor. During any period in which any member of the city council is serving as acting mayor, that councilor shall not vote as a member of the city council.

Section 3-8 Vacancy in Office of Mayor

(a) Whenever a permanent vacancy occurs in the office of mayor, the process for filling of the vacancy shall be as provided in this section.

(b) If a vacancy occurs within the initial 36 months of the mayor's term, the city council shall call a special election to be held within 90 days following the date of the vacancy; provided, however, that if the vacancy occurs in a regular municipal election year, the city council may request that the city clerk determine if the election calendar would allow for the filling of the vacancy at the next regular municipal election following such vacancy. Upon receiving the clerk's determination, the city council may delay the filling of the vacancy until such election notwithstanding that the date of the election may exceed 90 days from the date of the vacancy. The president of the city council shall serve as acting mayor until the vacancy is filled. If the city council president is unwilling or unable to serve, the city council shall elect a councilor to serve as the acting mayor from among its membership. The resulting vacancy on the council shall be filled in the manner provided in section 2-10. Any person serving as the acting mayor under this

section shall receive the compensation then in effect for the position of mayor and shall not vote as a member of the city council. The person elected as mayor shall take office immediately upon certification of the vote and serve for the remainder of the unexpired term.

(c) If a vacancy occurs in the final 12 months of the term, the office of mayor shall be filled as provided in this section; provided, however, that if the councilor serving as the acting mayor under this section chooses to be a candidate for mayor, such councilor shall not be entitled to have the words "candidate for reelection" printed with that councilor's name on the regular municipal election ballot. The resulting vacancy on the council shall be filled in the manner provided in section 2-10. The person elected as mayor at the regular municipal election shall take office immediately upon certification of the vote and shall serve for the remainder of the unexpired term.

ARTICLE 4

SCHOOL COMMITTEE

Section 4-1 Composition; Eligibility; Term of Office

(a) Composition — The school committee shall consist of the mayor, who shall serve as chair, and 6 members who shall be elected at large.

(b) Eligibility — Any registered voter may hold the office of school committee member.

(c) Term of office — School committee members shall serve for 2 year-terms beginning on the first business day in January following the election and continuing until a successor is qualified.

Section 4-2 Officers of the School Committee

The school committee shall organize biennially on the first business day in January and shall elect 1 of its members as vice chair. The vice chair shall preside in the absence of the chair.

Section 4-3 Powers and Duties

(a) The school committee shall have all powers which are conferred on school committees by the General Laws and such additional powers and duties as may be provided by the charter, by ordinance and as otherwise consistent with the General Laws. The school committee shall also have the specific powers and duties as provided in this section.

(b) The school committee shall elect a superintendent of schools who shall be charged with the administration of the school system, subject only to policy guidelines and directives adopted by the school committee and, upon the recommendation of the superintendent, to establish and appoint assistant or associate superintendents as provided by law.

(c) The school committee shall make all reasonable rules and regulations for the management of the public school system and for conducting the business of the school committee as it deems necessary or desirable.

(d) The school committee shall oversee the administration of the annual operating budget for the school department, subject to appropriation by the city council. The school committee shall have general charge of all school buildings and grounds and shall furnish all school buildings with proper fixtures, furniture and equipment. The school committee shall provide ordinary maintenance of all school buildings and grounds unless a central municipal maintenance department, which may include maintenance of school buildings and grounds, is established in

353 accordance with law. Whenever the school committee determines that additional classrooms are
354 necessary to meet the educational needs of the community, at least 1 member of the school
355 committee, or a designee thereof, shall serve on the agency, council or committee to which the
356 planning or construction of the new, remodeled or renovated school building has been delegated.

357 Section 4-4 Prohibitions

358 (a) Appointment — No member of the school committee, except the mayor, shall
359 hold any compensated appointive city or school office or employment during their term until 1
360 year following the expiration of their term unless waived by a 2/3 vote of the full school
361 committee. This subsection shall not preclude a city officer or employee who has taken a leave
362 of absence from such office or employment from resuming to their duties as such following their
363 service as a school committee member.

364 (b) Interference in administration — Except as may be otherwise authorized by the
365 charter, no member of the school committee or any subcommittee thereof shall directly
366 participate in the conduct of the administrative business of the schools.

367 Section 4-5 Exercise of Powers

368 (a) In general — Unless otherwise provided by General Laws or this charter, the
369 duties of the school committee shall be exercised in the manner as it determines appropriate.

370 (b) Quorum — The presence of 4 members of the school committee shall constitute a
371 quorum. The affirmative votes of 4 members shall be necessary to adopt any order, resolution or
372 other formal vote.

(c) Meetings to be public — All meetings of the school committee and each subcommittee thereof shall at open to the public unless otherwise provided by law.

Section 4-6 Filling of Vacancies

(a) If a vacancy occurs in the office of school committee, whether by failure to elect or otherwise and there is no regular city election scheduled to be held within 90 days following the date the vacancy, the remaining school committee members shall, within 30 days following the date of the vacancy, act to fill it.

(b) The school committee shall fill the vacancy for the remainder of the unexpired term by choosing the defeated candidate receiving the most votes for that office in the last regular city election if the defeated candidate received at least 20 per cent of the total ballots cast for that position. For the purpose of this section, the 20 per cent minimum threshold shall be calculated as a ratio of the total number of ballots cast for the office of school committee member to the total number of ballots cast for the defeated candidate.

(c) If a vacancy on the school committee cannot be filled pursuant to subsections (a) and (b), the president of the city council shall, within 30 days after making such determination, call a joint meeting of the city council and school committee to fill the vacancy. The city council and school committee shall choose a person to fill the vacancy from among the qualified voters of the city entitled to vote for that office. Any person chosen to fill the vacancy under this subsection shall serve until the next regular city election when the office shall be filled by the voters. The person selected to fill the vacancy shall take the oath of office and commence serving forthwith and shall continue to serve until a successor is qualified. Persons serving as school committee

members under this section shall not be entitled to have the words "candidate for reelection" printed with that person's name on the election ballot.

ARTICLE 5

FINANCIAL PROCEDURES

Section 5-1 Fiscal Year

The fiscal year of the city shall begin on the first day of July and shall end on the last day of June unless another period is required by the General Law.

Section 5-2 Annual Budget Policy

The mayor shall call a joint meeting of the city council and school committee, including the superintendent of schools, before the commencement of the budget process to review the financial condition of the city, revenue and expenditure forecasts and other relevant information prepared by the mayor to develop a coordinated budget.

Section 5-3 Submission of Operating Budget; Budget Message

At least 45 days before the beginning of the fiscal year, the mayor shall submit to the city council a proposed operating budget for all city agencies, which shall include the school department, for the ensuing fiscal year with an accompanying budget message and supporting documents. The budget message submitted by the mayor shall explain the operating budget in fiscal terms and in terms of work programs for all city agencies. It shall outline the proposed fiscal policies of the city for the ensuing fiscal year, describe important features of the proposed operating budget and include any major variations from the current operating budget, fiscal policies, revenues and expenditures and the reasons for such changes. The proposed operating

budget shall provide a complete fiscal plan of all city funds and activities and shall be in such form as the mayor deems desirable. The school budget, as adopted by the school committee, shall be submitted to the mayor at least 30 days before the submission of the proposed operating budget to the city council. The mayor shall notify the school committee of the date by which the proposed budget of the school committee shall be submitted to the mayor. The mayor and the superintendent of schools shall coordinate the dates and times of the school committee's budget process under the General Laws.

Section 5-4 Action on the Operating Budget

(a) Public hearing — The city council shall publish in at least 1 local newspaper and on the city's website a notice of the proposed operating budget as submitted by the mayor. The notice shall state: (i) the times and places where copies of the entire proposed operating budget will be available for inspection by the public; and (ii) the date, time and place, not less than 14 days after its publication, when a public hearing on the proposed operating budget shall be held by the city council.

(b) Adoption of the budget — The city council shall adopt the proposed operating budget, with or without amendments, within 45 days following the date the proposed budget was filed with the city clerk. In amending the proposed operating budget, the city council may delete or decrease any amounts except expenditures required by law; provided, however, that the city council shall not increase any item in or the total of the proposed operating budget unless otherwise authorized by the General Laws, except on the recommendation of the mayor. If the city council fails to take action on any item in the proposed operating budget within 45 days after

its receipt, that amount shall, without any action by the city council, become a part of the appropriations for the year and shall be available for the purposes specified in the item.

Section 5-5 Capital Improvement Program

(a) Submission — The mayor shall submit a capital improvement program to the city council at least 120 days before the start of each fiscal year. The capital improvement program shall include:

(i) a clear and concise summary of its contents;

(ii) a list of all capital improvements proposed to be undertaken during the ensuing 5 fiscal years, with supporting information as to the need for each capital improvement;

(iii) cost estimates, methods of financing and recommended time schedules for each improvement; and

(iv) the estimated annual cost of operating and maintaining each facility and piece of major equipment involved; provided, however, that such information shall be annually revised by the mayor with regard to the capital improvements still pending or in the process of being acquired, improved or constructed.

(b) Public hearing — The city council shall publish in at least 1 local newspaper and on the city's website a notice stating: (i) the times and places where entire copies of the capital improvement program are available for public inspection; and (ii) the date, time and place, not less than 14 days after such publication, when a public hearing on the program will be held by the city council.

(c) Adoption — At any time after the public hearing but before the first day of the last month of the current fiscal year, the city council shall by resolution adopt the capital improvement program, with or without amendment; provided, however, that each amendment shall be voted separately and that any increase in the capital improvements program as submitted shall clearly identify the method of financing proposed to accomplish such increase

Section 5-6 Independent Audit

The city council shall annually provide for an outside audit of the books and accounts of the city to be conducted by a certified public accountant or a firm of certified public accountants, which person or firm shall have no personal interest, direct or indirect, in the fiscal affairs of the city or any of its officers. The mayor shall annually provide the city council with funds sufficient to satisfy the estimated cost of conducting the audit as presented to the mayor, in writing, by the city council and to execute the contract for such services. The award of a contract to audit shall be made annually by the city council not later than September 15. The clerk of committees shall coordinate the work of the individual or firm selected. The report of the audit shall be filed in final form with the city council not later than March 1 in the year following its award.

Section 5-7 Expenditure in Excess of Appropriation

Except as otherwise provided by law, no official of the city shall knowingly and intentionally expend in any fiscal year any sums in excess of the appropriations, awards, grants or gifts made in accordance with law or involve the city in any contract for the future payment of money in excess of such appropriations, awards, grants or gifts. It is the intention of this section that Massachusetts General Laws shall be strictly enforced. Any official who violates this section

shall be personally liable to the city for any amount so expended to the extent that the city does not recover these amounts from the person to whom the sums were paid.

ARTICLE 6

ADMINISTRATIVE ORGANIZATION

Section 6-1 Organization of City Agencies

The organization of the city into operating agencies for the provision of services and the administration of government may be accomplished only through an administrative order submitted to the city council by the mayor. No administrative order may originate with the city council. The mayor may, subject only to express prohibitions in the General Law or this charter, propose to reorganize, consolidate or abolish any city agency, in whole or in part, or to establish such new city agencies as is deemed necessary but no function assigned by this charter to a particular city agency may be discontinued or assigned to any other city agency unless specifically provided for in this charter. The mayor may prepare and submit to the city council administrative orders that establish operating divisions for the orderly, efficient or convenient conduct of the business of the city. Such administrative orders shall be accompanied by a message from the mayor which explains the benefits expected to ensue and advises the city council if any provision of an administrative order shall require amendments, insertions, revisions, repeal or otherwise of existing ordinances. Whenever the mayor proposes an administrative order, the city council shall hold public hearings as necessary on the proposal giving notice by publication in at least 1 local newspaper and on the city's website, which notice shall describe the scope of the proposal and the time and place at which the public hearing will be held not less than 7 and not more than 14 days following the publication. An organization or

499 reorganization plan shall take effect in 60 days following the date the proposal was submitted to
500 the city council unless the city council shall, by a majority vote, within such period vote to
501 disapprove the plan. The city council shall only vote to approve or disapprove the plan.

502 Section 6-2 Merit Principles

503 All appointments and promotions of city officers and employees shall be made on the
504 basis of merit and fitness demonstrated by examination, past performance or other evidence of
505 competence and suitability. Each person appointed to fill an office or position shall be a person
506 especially fitted by education, training and experience to perform the duties of the office or
507 position to which such person is appointed or promoted.

508 ARTICLE 7

509 NOMINATIONS AND ELECTIONS

510 Section 7-1 City Elections: Regular, Preliminary

511 The regular city election shall be held on the first Tuesday following the first Monday in
512 November in each odd-numbered year.

513 There shall be a preliminary election held on the 4th Tuesday preceding every regular
514 city election for the purpose of nominating candidates.

515 Section 7-2 Nonpartisan Elections

516 All elections for city offices shall be nonpartisan and election ballots shall be printed
517 without any party mark, emblem or other designation.

518 Section 7-3 Preliminary Elections

(a) The number of signatures of voters required to place the name of a candidate on the official ballot to be used at a preliminary election shall be as follows: (i) for the office of mayor not less than 500 signatures; provided, however, that not more than 150 of those signatures shall be from any 1 ward; (ii) for the office of councilor at large or school committee member, not less than 350; provided, however, that not more than 100 of those signatures shall be from any 1 ward; and (iii) for the office of ward councillor, not less than 100 signatures from each ward.

(b) Ballot position — The order in which names of candidates shall appear on the ballot for each office at the preliminary election shall be determined by a drawing or lot which shall be conducted by the board of election commissioners. Such drawing or lot shall be held within 7 days following the certification of nomination papers and shall be open to the public.

(c) Determination of candidates for election — At a preliminary election, the 2 persons receiving the highest number of votes for nomination for an office shall be the sole candidates for that office whose names shall be printed on the official ballots to be used at the regular city election at which such office is to be voted upon, and no acceptance of a nomination shall be necessary to its validity. If 2 or more persons are to be elected to the same office at the regular election, the several persons equal in number to twice the number of persons to be elected, receiving at such preliminary election the highest number of votes for nomination for that office, shall be the sole candidates for that office whose names shall appear on the official ballot to be used at the regular city election.

If the preliminary election results in a tie vote among candidates for nomination receiving the lowest number of votes which, but for the tie vote, would entitle a candidate receiving the same to have that candidate's name printed on the ballot for the election, all candidates

participating in the tie vote shall have their names printed on the official ballot for the election notwithstanding the limit imposed on the number of candidates authorized to be printed on the regular election ballot.

A preliminary election shall be held in every ward of the city without regard to whether a lesser number of candidates have filed papers requesting their names to appear on the ballot for nomination than there are offices to fill.

Section 7-4 Regular City Election

The order in which the names of candidates appear on the ballot for each office shall be determined by a drawing or lot which shall be conducted by the board of election commissioners. Such drawing or lot shall be held within 7 days following the recording of results of the preliminary election and shall be open to the public.

Section 7-5 Special Election for Mayor

If a special election is required to fill a vacancy in the office of mayor pursuant to subsection (b) of section 3-8, a preliminary election shall also be held 28 days preceding the date established for the special election. The number of signatures required on nomination papers shall be the same as is provided in subsection (a) of section 7-3.

Section 7-6 Wards

The territory of the city shall be divided into 7 wards so established as to consist of as nearly an equal number of inhabitants as is possible to achieve based on compact and contiguous territory, bounded insofar as possible by the center line of known streets or ways or by other well-defined limits. Each ward shall be composed of voting precincts otherwise established in

562 accordance with law. The city council shall from time to time review such wards to ensure their
563 uniformity in number of inhabitants.

564 Section 7-7 Application of State Laws

565 Except as expressly provided in the charter and as authorized by law, all city elections
566 shall be governed by the General Laws relating to the right to vote, the registration of voters, the
567 nomination of candidates, the conduct of preliminary, regular and special elections, the
568 submission of charters and charter amendments and other propositions to the voters, the counting
569 of votes, recounts of votes and the declaration of results.

570 ARTICLE 8

571 VOTER PARTICIPATION MECHANISMS

572 Section 8-1 Petitions to City Council and School Committee

573 The city council or the school committee shall hold a public hearing and shall act finally
574 on every petition which is presented to it that is signed by not less than 150 voters. The hearing
575 shall be held by the city council or the school committee, or a subcommittee thereof, and final
576 action shall be taken with respect thereto not later than 3 months following the date the petition
577 was filed with the clerk of the council or the secretary of the school committee as may be
578 appropriate. Hearings on multiple petitions filed under this section may be held at the same time
579 and place. Notice of the public hearing shall be by publication in at least 1 local newspaper and
580 on the city's website, not less than 7 days prior to such hearing which shall contain a general
581 summary of the subject matter of the petition and the date, time and place at which the hearing

will be held. A copy of the said notice shall be mailed to the 10 petitioners whose names first appear on the petition.

Section 8-2 Initiative Measures

(a) Commencement of proceedings — Initiative procedures shall be started by the filing of an initiative petition with the clerk of the council or the secretary of the school committee, as appropriate. The petition shall be addressed to the city council or to the school committee, shall contain a request for the passage of a particular measure which shall be set forth in the petition, and shall be signed by at least 300 voters as of the date of the preceding city election, with at least 25 signatures certified from each ward. The petition shall be accompanied by a sworn affidavit signed by 10 voters and containing their residential addresses and stating that those voters constitute the petitioners' committee and shall be responsible for circulating the petition and filing it in its proper form.

(b) Referral to city attorney — Immediately following receipt of a proposed petition, the city clerk or the secretary of the school committee, as appropriate, shall deliver a copy of the petition to the city attorney. Within 15 days following receipt of a copy of the petition, the city attorney shall advise the city council or the school committee and the city clerk, in writing, whether the measure as proposed may lawfully be proposed by the initiative process and whether, in its present form, it may lawfully be adopted by the city council or the school committee. If in the opinion of the city attorney the measure is not in proper form, the reply shall state the full reasons therefor. A copy of the opinion of the city attorney shall be mailed to the members of the petitioners' committee.

(c) Submission to city clerk - If the city attorney determines that the petition is in proper form, the city clerk shall provide blank forms for the use of subsequent signers and shall print at the top of each blank form a fair, concise summary of the proposed measure, as determined by the city solicitor, and the names and addresses of the first 10 voters who signed the originating petition. The city clerk shall notify the petitioners' committee that the blank forms have been issued. Within 60 days following the date of the notice, the petition shall be returned and filed with the city clerk and signed by at least 10 per cent of the total number of registered voters as of the date of the most recent regular city election. Signatures to initiative petitions shall not be required to be all on 1 paper. All such papers pertaining to any 1 measure shall be fastened together and shall be filed with the board of election commissioners as 1 instrument, with the endorsement thereon of the names and resident addresses of the petitioners' committee. With each signature to the petition, there shall appear the street name and number, if any, of each signer. Within 10 days following the filing of the petition, the board of election commissioners shall ascertain the number of voters that signed the petition and the percentage that number is to the total number of voters as of the date of the most recent regular city election. The board of election commissioners shall attach a certificate to the petition showing the results of its examination and shall return the petition to the city clerk or the secretary of the school committee, as appropriate. A copy of the board of election commissioners' certificate shall also be mailed to the members of the petitioners committee.

(d) Action on petition— Within 30 days following the date a petition has been returned by the city attorney to the clerk of the council or the secretary of the school committee which has been certified by the board of election commissioners to contain more than 10 per cent of the names of voters as aforesaid and after publication in accordance with the General Laws for

626 charter objections, the city council or the school committee shall act with respect to each
627 initiative petition by passing the initiative measure without change, by passing a measure which
628 is stated to be in lieu of the initiative measure or by rejecting it. The passage of a measure which
629 is in lieu of an initiative measure shall be deemed to be a rejection of the initiative measure. If
630 the city council or the school committee fails to act with respect to any initiative measure which
631 is presented to it within 30 days following the date it is returned to the clerk of the council or the
632 secretary of the school committee, the measure shall be deemed to have been rejected on such
633 day. If an initiative measure is rejected, the clerk of the council or the secretary of the school
634 committee shall promptly give notice of that fact to the petitioners' committee.

635 (e) Supplemental petitions — Within 45 days following the date the notice of
636 rejection of an initiative petition has been given by the clerk of the council or the secretary of the
637 school committee, a supplemental initiative petition addressed to the city council or the school
638 committee may be filed in the office of the board of election commissioners. The supplemental
639 initiative petition shall be signed by a number of additional voters which is at least equal to 5 per
640 cent of the total number of persons registered to vote as of the date of the preceding regular city
641 election. If the number of signatures to a supplemental initiative petition is deemed to be
642 sufficient by the board of election commissioners, the city council shall call a special election to
643 be held on a Tuesday fixed by it not less than 35 but not more than 90 days following the date of
644 the certificate of the board of election commissioners that a sufficient number of voters had
645 signed the supplemental petition and shall submit the proposed measure, without alteration, to
646 the voters for determination; provided however, that if any city election is to be held within 120
647 days following the date of the certificate, the city council may omit calling a special election and
648 cause the question to be submitted to the voters at that approaching election.

649 (f) Publication — The full text of any initiative measure which is to be submitted to
650 the voters shall be published, in at least 1 local newspaper and on the city's website not less than
651 7 but not more than 14 days preceding the date of the election at which the question is to appear
652 on the ballot.

653 (g) Form of ballot — The ballots used for voting on a measure proposed by the voters
654 under this section shall contain a question in substantially the following form:

655 Shall the following measure which was proposed by an initiative petition take effect?

656 (Text of the measure or a fair and concise summary prepared by the petitioners'
657 committee)

658 Yes No

659 (h) Time of taking effect — If a majority of the votes cast on the question as stated on
660 the ballot is in the affirmative the measure shall be deemed to be effective forthwith unless a
661 later date is specified in the measure.

662 Section 8-3 Referendum Procedures

663 (a) Referendum petition, effect on final approval — If within 21 days following the
664 final approval of a measure by the city council or by the school committee a petition signed by
665 15 per cent of the total number of persons registered to vote as of the date of the preceding city
666 election and addressed to the city council or to the school committee, as the case may be,
667 protesting against the measure or any part thereof, the effective date of the measure shall be
668 temporarily suspended. The city council or the school committee shall forthwith reconsider the
669 measure or part thereof and if such measure or part thereof is not rescinded, the city council shall

670 submit the same, by the method herein provided, to the voters either at a special election which it
671 may in its discretion call or to the voters at the next regular city election and such measure or
672 part thereof shall be null and void unless a majority of the voters voting on the same at such
673 election vote in favor thereof.

674 (c)Section 8-2 shall apply to the referendum petition described in this section and, insofar
675 as applicable, shall apply to the procedure provided for in this section; provided, however, that
676 the words “protesting against the measure or any part thereof” shall. for the purposes of this
677 section be deemed to mean “measure” in those sections, wherever it may occur; and provided
678 further, that the word "referendum" in those sections shall be deemed to mean “initiative”, where
679 it may occur.

680 Section 8-4 Initiative and Referendum: Ineligible Measures

681 The following measures shall not be subject to initiative or referendum procedures:

682 (1) proceedings relating to the internal organization or operation of the city council or
683 the school committee;

684 (2) emergency measure adopted in accordance with this charter;

685 (3) the city budget or the school committee budget as a whole

686 (4) revenue loan orders;

687 (5) appropriation for the payment of the city's debts and obligations;

688 (6) appropriations of funds necessary to implement a written agreement executed
689 pursuant to collective bargaining;

(7) proceedings or parts thereof relating to the election, appointment, employment, suspension, transfer, demotion, removal or discharge of an officer or employee;

(8) proceedings repealing or rescinding a measure or part thereof which is protested by referendum procedure; and

(9) procedures providing for the submission or referral of matter to the voters at an election.

Section 8-5 Submission of Proposed Measures to Voters

The city council may, on its own motion, and shall, upon the request of the school committee if a measure originates with the school committee and pertains to affairs under its administration, submit to the voters for at a regular or special city election any proposed measure or a proposition for the repeal or amendment of any measure in the same manner and with the same force and as herein provided for submission on petition.

If 2 or more measures passed at the same election contain conflicting provisions, only the 1 receiving the greatest number of affirmative votes shall take effect.

Section 8-6 Recall of Elected Officials

(a) Application — Any person who holds an elected city office with more than 6 months remaining in the term of office may be recalled therefrom by the voters in the manner provided in this section.

(b) Recall petitions — At least 25 voters shall be required to file with the board of election commissioners a sworn affidavit containing the name of the officer whose recall is sought and a statement of the grounds upon which the petition is based. If the officer is elected at

711 large, the names on the affidavit shall be from the city at large. If the officer is elected by and
712 from a ward, the names on the petition shall be voters of that ward. The board of election
713 commissioners shall deliver to the voters petition blanks demanding recall, printed forms of
714 which they shall keep available. The blanks may be completed by writing or typewriting, they
715 shall be addressed to the city council, they shall contain the names of the persons who have filed
716 the affidavit and the grounds for recall as stated the affidavit. They shall demand the election of
717 a successor to the office and they shall be dated and signed by the board of election
718 commissioners. A copy of the petition shall be kept on file in the office of the board of election
719 commissioners in a record book maintained for that purpose. The recall petitions shall be
720 returned and filed with the board of election commissioners within 30 days following the date
721 the petitions were issued, They shall have been signed by at least 15 per cent of the total number
722 of persons registered to vote as of the date of the preceding city election if the officer is elected
723 at large or by at least 15 per cent of the total number of persons registered to vote in the
724 respective ward as of the most recent city election if the officer is elected from a ward.

725 The board of election commissioners shall forthwith certify thereon the number of
726 signatures which are names of voters.

727 (c) Recall election — If the board of election commissioners certifies that the petition
728 is sufficient, It shall forthwith submit the same to the city council. Upon its receipt of the
729 certified petition, the city council shall forthwith give written notice of the petition and certificate
730 to the person whose recall is sought. If such officer does not resign from office within 5 days
731 following delivery of the , the city council shall order an election to be held not less than 64 and
732 not more than 90 days after the date of the certification of the petition; provided, however, that if
733 another city election is to occur within 90 days after the date of the certificate, the city council

shall hold the recall election on the date of that other election. If a vacancy occurs in the office after a recall election has been ordered, the election shall nevertheless proceed as provided in this section and only the ballots for candidates shall be counted.

(d) Nomination of candidates — An officer who is the subject of a recalled shall not be a candidate in the recall election. Other candidates shall be entitled to have their names appear on the ballot at such recall election by filing the number of signatures for the office as required by subsection (a) of section 7-3. The publication of the warrant for a recall election and the conduct of a recall election shall be in accordance with the laws regulating elections.

(e) Propositions on ballot — Ballots used at a recall election shall state the following propositions in the order indicated:

For the recall of (name of officer)

Against the recall of (name of officer)

Adjacent to each proposition, there shall be a place to vote for either of the propositions. The word "candidates" shall appear after the propositions and the names of candidates shall be arranged as drawn by lot in accordance with subsection (b) of section 7-3.

If a majority of votes cast on the question of recall is in the affirmative, the candidate receiving the highest number of votes shall be declared elected. If a majority on the question is in the negative, the ballots for candidates shall not be counted, except as provided in subsection (c).

(f) Officeholder — The incumbent in office shall continue to perform the duties of the office until the recall election. If the officer is not recalled, the officer shall continue in office

for the remainder of the unexpired term, subject to recall as before and except as otherwise provided in this section.

If the officer is recalled in the election, the officer shall be deemed removed upon the qualification of a successor who shall hold office for the remainder of the unexpired term. If the successor fails to qualify within 5 days after receiving notification of election, the incumbent shall thereupon be deemed removed and the office shall be vacant and such vacancy shall be filled in accordance with articles 2 3, and 4 relative to the filling of such vacancies.

(g) Repeat of recall petition — No recall petition shall be filed against an officer within 3 months after the officer's take office or, in the case of an officer subjected to a recall election and not recalled thereby, until at least 6 months after the election at which the recall was submitted to the voters.

Section 8-7 Required Voter Participation

For any measure to be effective under initiative procedure or for any measure to be declared null and void under a referendum procedure or for any recall election, at least 20 per cent of the voters as of the most recent municipal election shall vote at the election that includes the initiative or referendum petition or the recall question on the ballot for submission to the voters.

ARTICLE 9

GENERAL PROVISIONS

Section 9-1 Charter Changes

(a) In general — This charter may be replaced, revised or amended in accordance with any procedure made available under the state constitution or by any laws enacted in accordance with the state constitution.

(b) Periodic review — In each year ending in 4, the city shall provide for a review of the charter by a special committee. The special committee shall consist of 3 persons to be appointed by the city council and 4 persons to be appointed by the mayor. A report of the committee shall be presented to the city council for review and the council shall determine if amendments to the charter shall be proposed.

Section 9-2 Severability

The provisions of this charter shall be severable. If any provision of this charter is held invalid, the other provisions shall not be affected thereby. If the application of this charter or any provision hereof shall be held invalid as to any person or circumstance, the application of this charter or any provision hereof to other persons and circumstances shall not be affected thereby.

Section 9-3 Specific Provision to Prevail

To the extent that any specific provision of this charter shall conflict with any provision expressed general terms, the specific provision shall prevail.

Section 9-4 Rules and Regulations

A copy of all rules and regulations adopted by a city agency shall be placed on file in the office of the city clerk and shall be available for review at a reasonable time by any person who requests such information. No rule or regulation adopted by a city agency shall become effective within 5 days following the date it is filed.

795 Section 9-5 Review of Ordinances

796 Every 5 years, the city council shall cause to be prepared a proposed revision,
797 recodification or republication of the ordinances of the city and such proposed revision,
798 recodification or republication shall be submitted to the city council for action. The city council
799 shall adopt the proposed recodification or revision, with or without amendment, or shall approve
800 the text of the republication prior to the expiration of the calendar year in which it was submitted.
801 Such revision, recodification or republication shall be under the supervision of the city attorney
802 or, if the city council shall so direct, under the supervision of a special counsel engaged for that
803 specific purpose. Copies of any such revision, recodification or republication shall be made
804 available for public distribution; provided however, that a fee, not to exceed the actual cost of
805 reproduction may be charged. In each year between such revision, recodification or
806 republication, an annual supplement shall be published which shall contain all ordinances and
807 amendments to ordinances adopted in the preceding year.

808 Section 9-6 Uniform Procedures Governing Multiple-Member Bodies

809 (a) Officers — All appointed multiple-member bodies shall elect a chair, a vice-chair
810 and a secretary and any other officer it deems necessary.

811 (b) Meetings — All appointed multiple-member bodies shall meet regularly at the
812 times and places that the multiple-member body, by its own rules, shall prescribe. Special
813 meetings of a multiple-member body shall be held at the call of the chair or by a majority of the
814 members. Notice of the meeting shall be posted as required by law. Except as otherwise
815 authorized by law, all meetings of all multiple-member bodies shall be open to the public.

(c) Meeting documents and submissions — Each appointed multiple-member body shall determine its own rules and order of business. Each multiple-member body shall provide for the keeping of agendas, minutes, and related submissions of its proceedings. All such documents shall be a public record, and certified copies shall be placed on file in the office of the city clerk within a reasonable period from the date of approval.

(d) Voting — If requested by a member, a vote of an appointed multiple-member body shall be taken by a roll call vote and the vote of each member shall be recorded in the minutes, but if the vote is unanimous, only that fact need be recorded.

(e) Quorum — A majority of members of an appointed multiple-member body shall constitute a quorum. Unless some other provision is made by the multiple-member body's own rules while a quorum is present, except on procedural matters, a majority of the full membership of the body shall be required to vote on any matter representing an exercise of the powers of the multiple-member body. General Laws related to a vote to meet in executive session shall always require a majority of members of the body.

Section 9-7 References to General Laws

All references to the General Laws in this charter shall mean the General Laws of the Commonwealth of Massachusetts and shall include all amendments and revisions thereto enacted after the adoption of this charter.

Section 9-8 Computation of Time

In computing time under this charter, the day of the act or event after which the designated period of time shall begin to run shall not be included. The last day of the period shall

be included unless it falls on a Saturday, Sunday or legal holiday, in which event, the period shall be extended to the next day which is not a Saturday, Sunday or legal holiday. When the period of time designated is less than 7 days, Saturdays, Sundays and legal holidays shall not be included; provided however, that when the period of time is 7 days or more, every day shall be counted.

Section 9-9 Certificate of Election of Appointment

Every person elected, including those elected by the city council or appointed to an office of the city, shall receive a certificate of such election or appointment from the city clerk.

Every person elected, including those elected by the city council or appointed to an office of the city, shall take an oath or affirmation of their election or appointment before performing any duties of their office. A record of such oath or affirmation shall be placed on file in the office of the city clerk.

Section 9-10 City Residence Preference

Except when otherwise exempt by state law or by an applicable collective bargaining agreement, a person who has resided in the city for a continuous 12-month period prior to being appointed to a city office, position, board or commission shall be preferred for appointment if the qualifications and experience of the resident applicant are substantially similar to the nonresident applicant.

Section 9-11 Limitation on Office Holding

No person shall hold more than 1 full-time city office for which a salary or other emolument is payable from the city treasury. The hours worked in any part-time position shall

not conflict with the hours worked in any full-time position. Nothing in this section shall be deemed to supersede section 20 of chapter 268A of the General Laws.

Section 9-12 Enforcement of Charter Provisions

It shall be the duty of the mayor to see that the charter is faithfully followed and complied with by all city agencies and city employees. If it shall appear to the mayor that a city agency or city employee has failed to follow this charter, the mayor shall cause written notice to be given to such agency or employee directing compliance with the charter. If it shall appear to the city council that the mayor personally has failed to follow this charter, the city council shall, by resolution, direct the attention of the mayor to those areas in which it believes there was a failure to comply with this charter. Actions under chapter 231A of the General Laws may be commenced to determine the rights, duties, status or other legal relations arising under this charter, including any question of construction or validity which may be involved in such determination.

ARTICLE 10

TRANSITIONAL PROVISIONS

Section 10-1 Continuation of Existing Laws

All special acts of the general court and all ordinances, rules, regulations and resolutions of the city which are in force on the effective date of this charter which are consistent with this charter shall continue in full force and effect until amended, revised or repealed as provided by law or this charter.

Section 10-2 Continuation of Government

878 All city agencies shall continue to perform the duties of the office until reappointed or
879 reelected or until any successors to their respective duties are duly appointed or elected or until
880 their duties have been transferred and assumed by another city agency.

881 Section 10-3 Continuation of Administrative Personnel

882 Any person holding a city office or a position in the administrative service of the city
883 shall retain such office or position and shall continue to perform the duties thereof until
884 provisions have been made for the performance of those duties by another person or agency;
885 provided, however, that no person in the permanent full-time service of the city shall forfeit pay
886 grade or time in service. All such persons shall be retained in a capacity as similar to their former
887 capacity as is practicable and any reductions in the personnel needs of the city shall be
888 accomplished through attrition unless specific provision is otherwise made in this article.

889 Section 10-4 Transfer of Records and Property

890 All records, property and equipment of a city agency or part thereof, the powers and
891 duties of which have been transferred or assigned to another city agency under this charter shall
892 be transferred forthwith to the city agency to which such powers and duties have transferred or
893 assigned.

894 Section 10-5 Effect on Obligations, Taxes, etc.

895 All official bonds, recognizances, obligations, contracts and other instruments entered
896 into or executed by or to the city before the adoption of this charter and all taxes, assessments,
897 fines, penalties and forfeitures incurred or imposed, due or owing to the city shall be enforced
898 and collected. All writs, prosecutions, actions and causes of action, except as otherwise provided

899 herein, shall continue without abatement and remain unaffected by this charter and no legal act
900 done by or in favor of the city shall be rendered invalid by the adoption of this charter.

901 Section 10-6 Time of Taking Effect.

902 (a) This charter shall take effect on upon passage, except as otherwise provided in this
903 section:

904 (b) Until such time as an administrative order or a series of administrative orders are
905 adopted pursuant to article 6, all current offices and departments shall continue to exist and shall
906 continue to perform the duties and responsibilities of those offices and departments as were
907 performed at the time of the adoption of this charter, including:

908 (i) the board of election commissioners;

909 (ii) the board of assessors and the assessing department;

910 (iii) the personnel department;

911 (iv) the department of public works;

912 (v) the chief financial officer; and

913 (vi) the department of inspectional services.

914 (c) Within 180 after the effective date of this charter, the mayor shall promulgate an
915 administrative code which shall be comprised of a series of administrative orders providing for
916 the organization of city government into operating agencies in accordance with article 6.

(d) The administrative code may retain, modify, repeal or replace any provisions of the following special acts relating to the organization of city government: chapter 92 of the acts of 1931 relating to the board of election commissioners; chapter 655 of the acts of 1956 relating to off-street parking; chapter 59 of the acts of 1986 relating to public works; chapter 253 of the acts of 1986 relating to the appointment of health inspectors; chapter 465 of the acts of 1991 relating to the appointment of the animal control officer; chapter 167 of the acts of 1999 relating to the traffic commission; chapter 332 of the acts of 2014 relating to municipal salaries of elected officials; chapter 378 of the acts of 2014 relating to inspectional services; and chapter 203 of the acts of 2024 relating to capital projects. Any proposed modifications, repeal or replacement of any of the aforementioned special acts shall take effect upon their approval by the general court.

(e) Within 180 days after the effective date of this charter, the mayor shall promulgate an administrative order establishing a language access plan to ensure that persons with limited English proficiency shall have meaningful access to city services and programs.

(f) Department heads in office on or before January 1, 2025 that have served a full term of office and have been or will be appointed to the same office to succeed themselves shall thereafter serve for an indefinite term, not subject to reappointment, but subject to removal in accordance with applicable laws, rules, regulations and policies. Any removal shall be for just cause. All persons classified as department heads shall be designated by administrative order in accordance with article 6.

(f) Within 180 days after the effective date of this charter, the mayor shall promulgate a progressive disciplinary policy for department heads and employees of the city who are not subject to a collective bargaining agreement.

939 Section 10-7 Retention of Special Acts

940 Notwithstanding any provision of this charter to the contrary, chapter 53 of the acts of
941 1998 and chapter 69 of the acts of 2013 shall remain in full force and effect.

942 SECTION 5. This act shall take effect upon its passage."